



SERAPHYN
CARE SOLUTIONS

DIRECT HIRE SERVICES AGREEMENT

The terms of this Direct Hire Services Agreement ("Agreement") are agreed to by and between (Seraphyn Care Solutions) and _____ ("Client") as of _____ (the "Effective Date").

1.0 PLACEMENT SERVICES & COMPENSATION

1.1 Services. Seraphyn Care Solutions will present candidates for direct hire to Client. Based upon Client's independent review and analysis, Client will hire candidates it determines to be suitable (each, a "Direct Hire"). Each Direct Hire will be an employee of the client and will work under the sole management and direction of Client. In no event shall the Direct Hire be deemed an employee of Seraphyn Care Solutions. Client is solely responsible for obtaining any work permits or licenses and for payment of the Direct Hire's wages, expenses, benefits, workers' compensation premiums, withholding of all taxes, and all employer responsibilities. Moreover, Client is solely responsible for checking references and confirming the accuracy of resumes. Any background checks performed by Seraphyn Care Solutions are made at Client's request and expense and are not intended to be an exhaustive check of employment, education, or other background information and are not warranted in any way by Seraphyn Care Solutions.

1.2 Referral Procedure.

A. Notice to Seraphyn Care Solutions: Client will notify Seraphyn Care Solutions in writing, the specific requirements for positions for which it is hiring.

B. Presentation of Candidates: Seraphyn Care Solutions will introduce potential candidates ("Candidate") for consideration for employment by Client. Client understands and acknowledges that Seraphyn Care Solutions is only an introduction service, and the decision of whether to hire a particular Candidate resides solely in the absolute discretion of Client.

C. Time Limitation on Introduction: Should Client not elect to employ initial Candidate introduced to Client by Seraphyn Care Solutions, Seraphyn Care Solutions will arrange for additional introductions.

D. Placement Fees: If Client elects to employ a Candidate, Client agrees to immediately confirm this in writing.

E. Candidate Screening: Upon receipt of confirmation in writing of a Candidate's start date, and only if requested by Client, Seraphyn Care Solutions will commence on behalf of Client the following tests: Nationwide Criminal Records Investigation, The Nationwide Sex & Violent Offenders Search, and standard Drug-Screening Test. It will be the sole responsibility of the Client to review these results and determine whether to employ a particular Candidate based upon these results.

1.2 Fees and Payment Terms. Client agrees to pay Seraphyn Care Solutions a Direct Hire placement fee of **10%** of the annual total compensation for the first year of employment with Client for each Direct Hire ("Client Fee"). The Client is obligated to make a payment of \$50 in advance as an engagement fee for each candidate when it places a Direct Hire request to Seraphyn Care Solutions.

Client must pay 10% of the Direct Hire annual total compensation (minus \$50 engagement fee), which shall be invoiced on the candidate's Start Date to be paid within ten (10) days from the date of the invoice. Seraphyn Care Solutions shall be entitled to the Client Fee provided herein where a candidate is hired within one (1) year of Seraphyn Care Solutions introducing the candidate to Client. Neither Client nor any of Client's affiliates shall hire or contract with, directly or indirectly, any candidate presented by Seraphyn Care Solutions to Client for a period of one (1) year from the date of Seraphyn Care Solution's referral unless Client pays Seraphyn Care Solutions the fees set forth in this Agreement. The Client Fee shall be considered earned upon the candidate's start date with Client. If Seraphyn Care Solutions does not receive payment within 10 days of the start date, the guarantee policy described in section 1.3 below is null and void. Invoices not paid on time will be subject to finance charges of 2% per month added to the outstanding invoice amount and computed from the initial due date of the invoice. Client agrees to pay reasonable collection and attorneys' fees, including costs, incurred by Seraphyn Care Solutions in collecting amounts due from Client.

1.3 Guarantee. If, within the first 60 calendar days of starting work with Client, either Client terminates Direct Hire's employment for cause or Direct Hire terminates employment with Client for any reason, Seraphyn Care Solutions will provide a one-time replacement candidate within 30 days' time for the same role ("Guarantee"). No further Client Fee will be charged except that the same shall be adjusted based on the replacement hire's compensation. This Guarantee shall be enforced ONLY if Client has paid the Direct Hire Fee. The Guarantee does not apply if the Direct Hire is laid off due to downsizing, economic reasons, or lack of work or if the client fee is still outstanding. The replacement Guarantee must be applied within 2 months of Direct Hire's termination and holds no cash value.

The terms of this Guarantee are contingent upon the following:

- Payment must be received according to the terms herein stated; and
- Notification of Direct Hire's termination must be sent within 10 days of Direct Hire's last day of employment to the following email address: _____

1.4 Previous Knowledge. Once Seraphyn Care Solutions presents a resume, Client is precluded from claiming previous knowledge of this candidate unless it notifies Seraphyn Care Solutions of its previous knowledge within 3 business days of Seraphyn Care Solutions' referral. "Previous Knowledge" means that the Client can demonstrate that they have had contact with and received the resume of the referred candidate within the last 3 months. If Client demonstrates Previous Knowledge of a candidate, no Client Fee is earned.

2.0 TERM; TERMINATION

This Agreement shall remain in effect for a period of one (1) year as of the Effective Date. After the initial one-year term period, this Agreement shall automatically renew for successive one (1) -year periods. Either party may terminate this agreement with thirty (30) days' written notice to the other party.

Seraphyn Care Solutions may terminate this Agreement at any time for non-payment of any amounts due to Seraphyn Care Solutions under this Agreement. Termination of this Agreement shall not relieve either party of its obligations hereunder, including but not limited to Client's obligations to pay all Fees.

3.0 NOTICE

All notices or other communications which may be or are required to be given to any other party pursuant to this Agreement will be given to the address set forth in the signature block hereto (or such other address as is directed in writing as the notice address), as follows: by hand delivery (including by courier), recognized overnight delivery service, postage prepaid U.S. Mail (registered or certified mail with confirmation of delivery), or through electronic mail to: Notice will be deemed to be given on the date such communication is received.

4.0 INTEGRATED AGREEMENT; AMENDMENT; GOVERNING LAW; ASSIGNMENT; COOPERATION

This Agreement constitutes the entire agreement between the parties regarding the subject hereof, supersedes any and all other prior direct hire service agreements, whether oral or in writing, between the parties, and cannot be amended or modified except by written agreement signed by both parties. The validity, interpretation, and performance of this Agreement will be governed by the laws of North Carolina without regard for that body of law known as conflicts of laws. First, however, in the event of a dispute, the parties agree to try to settle amicably between themselves. If the dispute cannot be settled through negotiation, the parties agree first to try in good faith to settle the dispute by mediation administered by the American Arbitration Association under its Commercial Mediation Procedures before resorting to arbitration, litigation, or some other dispute resolution procedure. The services that Seraphyn Care Solutions will render to Client under this Agreement will be as an independent contractor. Nothing contained in this Agreement will be construed to create the relationship of principal and agent, or employer and employee, between Seraphyn Care Solutions and Client. Neither party will be responsible for failure or delay in performance of this Agreement if the failure or delay is due to labor disputes, strikes, fire, riot, war, terrorism, pandemic, epidemic, acts of God, or any other causes beyond the control of the nonperforming party. The failure of a party to enforce the provisions of this Agreement will not be a waiver of any provision or the right of such party thereafter to enforce each and every provision of this Agreement. The provisions of this Agreement will inure to the benefit of and be binding on the parties and their respective representatives, successors, and assigns. No provision of this Agreement may be amended or waived unless agreed to in a writing signed by the parties. Either party may assign this Agreement to an affiliate Seraphyn Care Solutions, or in connection with any merger, acquisition, divestiture, or reorganization, subject to the non-assigning entity's credit approval of the assignee, whose approval shall not be unreasonably withheld. The parties hereby agree to cooperate in good faith to address issues in a manner that encourages full cooperation and communication between the parties.

5.0 LIMITATION OF LIABILITY

EACH PARTY'S LIABILITY ARISING OUT OF THIS AGREEMENT SHALL BE LIMITED TO THE OTHER PARTY'S DIRECT DAMAGES AND SHALL NOT EXCEED THE CLIENT FEE(S) PAID OR OWING TO SERAPHYN CARE

SOLUTIONS BY THE CLIENT FOR THE SERVICES HEREUNDER DURING ANY TWELVE (12) MONTH PERIOD. NEITHER PARTY SHALL IN ANY EVENT BE LIABLE FOR PUNITIVE DAMAGES, LOSS OF PROFIT, LOSS OF GOODWILL, OR OTHER SPECIAL, INDIRECT, OR CONSEQUENTIAL DAMAGES SUFFERED BY THE OTHER PARTY UNDER THIS AGREEMENT, WHETHER IN CONTRACT OR TORT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE PROVISIONS OF THIS SECTION SHALL SURVIVE TERMINATION OF THIS AGREEMENT.

6.0 INDEMNITY

Each party (the "Indemnifying Party") shall defend and indemnify the other party ("Indemnified Party") from and against any and all suits and claims, including claims for breach of this Agreement; a Party's failure to discharge its duties and responsibilities; bodily injury and tangible personal property damage, as well as reasonable attorneys' fees and other expenses (collectively, the "Claims"), to the extent directly arising out of the Indemnifying Party's acts, omissions, negligence, or willful misconduct in performance of the obligations hereunder. The provisions of this Section shall survive termination of this Agreement.

7.0 CONFIDENTIAL INFORMATION

Each party acknowledges and agrees that in performing its obligations under this Agreement it may have access to valuable trade secrets and confidential information of the other party. Neither party shall disclose confidential information to a third party without written consent. Each party agrees that it shall take steps reasonably necessary to preserve and protect the confidentiality of the Confidential Information. In addition, Confidential Information shall include the terms of this Agreement.

WHEREAS, THE PARTIES HAVE CAUSED THIS DIRECT HIRE SERVICES AGREEMENT TO BE DULY EXECUTED AS OF THE EFFECTIVE DATE (_____)

Client Information:

Seraphyn Care Solutions Name:

Signature

Signature

Name

Name

Title

Title

Date

Address

City/State/Zip

Phone

Email

Date

Phone

Email
